IN THE HIGH COURT OF CHHATTISGARH AT BILASPUR

WRIT PETITION (PIL) NO. /2016

In Re Extra Judicial Killings in District Bijapur

PETITIONERS: Suneeta Pottam & Others

VERSUS

RESPONDENTS: State of Chhattisgarh & Others

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BILASPUR

DATED: **COUNSEL FOR THE PETITIONERS**

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SYNOPSIS

With the intensification of the counter-insurgency campaign in South Chhattisgarh, there has been a spate of extra-judicial killings of alleged Naxalites by the police and paramilitary forces in the villages of Bijapur District. While the security forces claim that these cases are of ambush of security forces by Naxalites and the ensuing deaths have resulted due to firing in self defence, the villagers and family members of the deceased claim that these are deaths of unarmed villagers, who have been executed in cold blood by security forces. Petitioners 1 and 2 in this PIL are young, 18 and 19 year old women from an affected village, Korcholi, who have documented four such cases of extra-judicial executions and disappearances from their village and neighbouring villages with the help of Petitioner 3, a national network of women and women's organizations opposing sexual violence and defending civil liberties. The instant petition seeks general and specific reliefs for families of the deceased and villagers in this conflict zone.

Case 1 - Karenar Village, Bijapur Kotwali PS

On 21st May 2016, Bijapur police announced that they had killed two Naxalites during an encounter with 30-35 Maoists in the jungles of Cherkanti and Karenar village, who were identified as a husband and wife couple, Tati Pande and Manoj Hapka, members of the Local Operational Squads (LOS) of the Maoists in the

Darbha Division (which is more than 150 kms from the place where they were killed).

This is disputed by the mother and brother of Tati Pande, who used to reside with the deceased couple in their house in Karenar village, PS Gangaloor, District Bijapur. In sworn affidavits, the mother, Tati Bandi and the brother, Tati Ramalu, claim that the deceased couple had been living in Karenar and engaging in farmwork for the past five years. Prior to this, they had indeed joined the banned Maoist party for a period of six months to a year, but having fallen in love with each other, they decided to marry each other and leave the party. Also, the deceased Tati Pande was in poor health and required medical treatment, which also contributed to their resolve to return to the mainstream of society.

On 20th May, 2016, at around 7-8 pm when the family had sat down for their evening meal, security forces entered the house, led by some surrendered Naxalites. They rounded up the deceased Manoj Hapka and Tati Pande, took them into their custody and forced the deceased to accompany them, telling the concerned family that they were being taken to be “surrendered” and will be released on the following morning at Gangaloor PS, District Bijapur.

However, in the morning, the family members reached Gangaloor only to find out that that two had been killed and their bodies taken to Bijapur. The bodies of the deceased were returned to the family, devoid of any clothing, and with gunshot wounds as well as stab wounds and evidently broken bones. The family members also suspect that deceased Pande had been sexually assaulted before being killed.

Some family members and villagers also found the discarded clothing of the deceased Manoj Hapka and Tati Pande in a clearing in the jungles close to village Reddi, with a lot of blood stains on the ground near it, leading them to suspect that the couple was killed there.

The villagers and the parents of the deceased, though illiterate and Gondi-speaking, have tried their level best to register their protest at the way in which their children had been killed in a brutal and inhuman way in cold-blood. When they were not able to get their complaints recorded in writing officially, they informed visiting journalists and members of a fact-finding team of the All Indian People's Forum, about the manner in which the couple had been picked up from the village before many eye-witnesses. They also sought the help of the adivasi leader Soni Sori in their quest for justice, addressed a press conference and contacted Petitioners no. 1 and 2, to help seek justice for their children.

Case 2 - Village Itavar, PS Gangaloor, District Bijapur

On 26th November 2015, Bijapur police announced that a Naxal had been shot dead the day before at around 5 pm, following a fierce, hour-long gun-battle between the security forces and the Naxalites in a jungle close to the village Korcholi within the jurisdiction of the Gangaloor Police Station. The name of the deceased was not released to the press.

Mainu Kunjam, wife of Sukku Kunjam, resident of Itavar village, Gangaloor PS in Bijapur District and other villagers of Korcholi aver that it was Mainu's husband, Sukku Kunjam, who was killed by the security forces in cold blood on that day. On November 24th, 2015, the deceased Sukku Kunjam, and his brother, Soma, were working in their fields in Itavar village, when security forces arrived at their village. Fearing arbitrary punishments, arrests and beatings, the two brothers, along with other able bodied men of Itavar village fled their village.

After trying to evade the security forces for a whole day, the deceased Sukku Kunjam reached the neighbouring village of Korcholi in the morning of November 25th, 2015, where he stayed with his relative Pandu Pottam. Later on that day, the security forces also entered the village of Korcholi, camped there for the entire day. An eyewitness, Pido Pottam has sworn an affidavit that in the evening that day, the deceased Sukku Kunjam was

walking in the village with Dula Pottam and Sannu Pottam, when suddenly, without any warning, gunshots were fired in their direction. The deceased Sukku Kunjam died instantly, being hit in the chest, but Dula Pottam, who was hit in his leg, and Sannu Pottam, who was unhurt, managed to run away and escape further firing. The security forces then emerged from where they were hiding in the village. The villagers of Korcholi recognize some of the security force members as surrendered Naxalites who used to visit their villages.

The wife of the deceased, Mainu Kunjam, being a young woman with an infant child, along with the women from three villages of Itavar, Korcholi and Nendra, complained to the police when they went to Bijapur to retrieve the body of the deceased, about the fact that Sukku had been killed in cold-blood, but they were not taken seriously and their complaints were not lodged in writing. When a fact finding team of WSS, Petitioner 3, visited the village Korcholi in May 2016, the villagers informed them of this incident, and even mentioned this instance in a complaint to the police. Later on, Sukku's wife, Mainu Kunjam herself, through the help of Petitioners 1 and 2, filed a formal complaint in the police station alleging that her husband had been killed in cold blood. However, no investigation appears to have been commenced on this complaint yet.

Case 3 - Village Palnar, Police Station Gangaloor, District Bijapur

It was reported that on 5th July, 2016, a team of the District Reserve Guard had been fired upon by Naxalites in the jungles close to Cherpal and Kikler, where they reciprocated gunfire and engaged in an hour long exchange of fire. At the end of which they succeeded in flushing out the Naxalites, and discovered the body of an unknown Naxalite killed in this gunfire. On identification, he was identified as one Chaituram, a member of the Jan Militia.

However, villagers of Palnar dispute the police story and allege that the deceased is Seetu Hemla, aged around 25 years,

resident of village Palnar. Sukli Hemla, the mother of the deceased Seetu Hemla and Lachmi Hemla, the wife of the deceased, have claimed in sworn affidavits that the deceased Seetu Hemla was ploughing his field in the morning of the 5th July, when the security forces suddenly emerged from the surrounding jungles, encircled him and caught him. They tied his hands behind him, and dragged him away to the nearby jungles, in full view of his family members and other villagers. The family members were also badly beaten up by the security forces, when they tried to follow the security forces to see where they were taking Seetu. The family and the villagers recognize some of the captors of Seetu as well as the assailants who beat up the family members as surrendered Naxalites who used to live in their village, and in neighbouring villages.

Although the villagers could not determine where the security forces had kept Seetu, they heard Seetu's cries coming from the jungle, where he was screaming in pain and shouting out for his mother. But this was followed by gunfire, which inhibited the villagers from going in the direction of his cries.

Seetu's mother, Sukli spent the entire day entreating the police staff at the Cherpal Post (Chowki) and the Gangaloor Police Station to give her some information about her son, but they could not help her. Seetu's wife, Lachmi Hemla, and other womenfolk of the village searched high and low for Seetu in the surrounding jungles but could not find him. In evening, while returning to the village, they saw a posse of policemen emerge from a clearing, and later on, after visiting the site where the police had been, they saw a spot where it was evident that Seetu had been hung from a tree and killed.

The villagers recovered the body of Seetu the next day from the Bijapur District Hospital. The body seemed to have several gunshot wounds and was also badly mutilated, with flesh wounds, broken bones in the legs and broken finger bones, suggesting that he was subjected to inhuman ante mortem torture.

The family, although illiterate and living in a remote village, has tried to seek justice for their slain son, but with little success. They informed a fact-finding team that reached their village on the 22nd of July as to how Seetu had been killed, and also sent a written complaint to the Gangaloor Police Station seeking the registration of an FIR against the errant security persons who had murdered Seetu. However, they are unaware if any FIR has been registered yet, hence, they reached out to Petitioners no. 1 and 2, to seek their assistance in their quest for justice for Seetu.

Case 4 - Village Andri Harrapara, Police Station Gangaloor, District Bijapur

The villagers of Andri Harrapara have informed the Petitioners 1 and 2 that on February 16th, 2016, three days after the village celebrated the festival Gaadi Pandum, security forces came to the area and killed one villager, Kuhdami Ganga s/o Bhima and three days later, caused the disappearance of a young child, Sodhi Sannu s/o Hurra.

On Tuesday, the 16th of February 2016, the deceased Kuhdami Ganga along with two other young men of the village, had gone to the jungle to collect *siyadi* leaves, in preparation for a wedding the next day. The three were gathering their leaves in the jungle, when they realized that some policemen were hiding in the forest. Fearful of arbitrary arrests and detentions by police, the three started running back to the village, when the police opened fire at them, without warning or provocation. Kuhdami Ganga got hurt in the firing, and dropped down, while the other two escaped. Some of the security men in these forces have been identified by villagers.

The police continued to stay in the village for three days, during which most men of the village camped out in the jungles, fearful of the police. On the 18th of February, the men, hiding out in the jungles recovered the body of Ganga from a pit where he had fallen, but could not bring it back to the village due to the presence of policemen. Finally, the police departed on Friday

morning, when the body was brought back. However, the police returned that evening.

At around 5 pm, a young child Sodhi Sannu, aged 9-10 years, was working in the tomato fields close to his house, when the security forces returned to the village. No one in the village witnessed what happened next, but there was sound of gunfire. Alarmed, the mother and a neighbor rushed to the fields, and they saw blood spots on the way, but were prevented from going further by policemen, who threatened to kill them.

The young child Sodhi Sannu has not been seen since by the villagers, who have searched all the neighbouring jungles for any sign of him. The very next day after this incident, Sannu's parents, Hurra and Bhime went to the Gangaloor PS to inquire about him, but obtained no information. They went to the Bijapur PS, where they were not even allowed inside. Disheartened, they finally approached the Petitioners 1 and 2 for help, and were able to file two police complaints with their assistance. However, it is not clear whether any steps have been taken to inquire into these instances yet.

These four cases document the vulnerability of people living in the villages in and around Korcholi, where Petitioners 1 and 2 reside, to arbitrary detentions, executions and disappearances at the hands of security forces, the helplessness of their families in seeking justice for these incidents, and the impunity with which the security forces commit heinous crimes against these most marginalized of populations. These cases also throw up the grave questions about the use of surrendered militants in these counter-insurgency measures, and the crimes committed by them.

Hence, the Petitioners pray for the establishment of an independent, high-powered Special Investigation Team to inquire into these four and other cases of encounters in these villages, and inter-alia, they seek a direction to immediately cease the use of surrendered militants in anti-Naxal combat operations.

LIST OF DATES

Date	Event
05.07.2011	Supreme Court order in *Nandini Sundar and Ors. V. State of Chhattisgarh (W.P.C. No. 250 of 2007)*, ordering the state to stop using SPOs in counterinsurgency programs
16.11.2015	Order of the Chhattisgarh government laying down the revised policy for surrender of Naxalites
24.11.2015	[Itavar Encounter] Security forces enter Itavar village, forcing Sukku Kunjam and other men of the village into the jungles
25.11.2015	[Itavar Encounter] Sukku Kunjam reaches his relatives place in Korcholi village. Security forces also reach Korcholi a little later. An unarmed Sukku Kunjam is killed by security forces in the middle of the village of Korcholi, in front of village witnesses
26.11.2015	[Itavar Encounter] Bijapur police announce that a naxalite has been killed in an encounter with many Naxalites in the jungles of the area. The body of Sukku Kunjam is handed over to his wife, Mainu, and the other women of Korcholi, Nendra and Itavar. The funeral procession of village women is harassed by the police, on its way back to the village.
18.02.2016	[Andri Encounter] Villagers of Andri, hiding in the forests out of fear of the visiting forces, discover the dead body of Kuhdami Ganga, which was lying in a pit.
19.02.2016	[Andri Encounter] Body of Kuhdami Ganga is brought back to the village, while the forces temporarily depart from the village. The forces return in the evening, and there is sound of gunfire. A child, Sodhi Sannu, aged 9-10 years old, is working in the tomato field of his family, and is

	never heard from again, probably encountered.
20.02.2016	[Andri Encounter] Parents of Sodhi Sannu visit Gangaloor PS to ask for their child, but receive no information. They visit the Bijapur PS but are not even allowed to enter inside the PS.
05.05.2016 to 07.05.2016	[Itavar Encounter] A fact-finding team from Petitioner 3 Organization, WSS, visits the village Korcholi and learns about many complaints that the villagers have against the police, including that of Sukku Kunjam's encounter
07.05.2016	[Itavar Encounter] Villagers of Korcholi, helped by Petitioners 1 and 2, sumit a complaint letter to the Bijapur police station, outlining their complaints, including the extra judicial killing of Sukku Kunjam
07.05.2016	[Itavar Encounter] Villagers of Korcholi testify before a high level fact finding team comprising of Dr. Virginius Xaxa (Director, TISS, Guwahati), Mr. EN Ram Mohan (former Director General of BSF) and Bela Bhatia (Social Scientist) about harassment by police and security forces during anti-Naxal operations, and also detail Sukku Kunjam's cold blooded murder by security forces
20.5.2015	[Karenar Encounter] Deceased Tati Pande visits Bijapur to obtain bonus payment for Tendu Patta collection. In the evening, security forces enter the house of Tati Bandi, round up Tati Pande and Manoj Hapka, and forcibly take away deceased Manoj Hapka and Tati Pande on the pretext of getting them "surrendered", in front of many eye witnesses in the village
21.5.2016	[Karenar Encounter] Family members of the deceased Tati Pande and Manoj Hapka are handed back the dead bodies of their children showing gunshot wounds and stab wounds on the bodies. Family's efforts to register their complaint with the police are ineffective. CRPF and Bijapur police

	issue statements claiming that a dreaded Naxal couple, with a joint reward of Rs 6 Lakhs on their heads, has been “neutralized” in an encounter in the jungles close to Karenar.
23.5.2016	[Karenar Encounter] Villagers discover discarded clothes of the deceased couple in the jungles close to village Reddi, along with blood stains on the ground, showing the place where the couple was murdered.
11.6.2016	[Karenar Encounter] Petitioners are visited by a fact-finding team from the All India People’s Forum and inform them of the brutalization and murder of their children at the hands of the security forces.
12.6.2016	[Karenar Encounter] The AIPF team conducts a press conference and makes public its finding of a fake encounter in Karenar village in the case
04.07.2016	[Karenar Encounter] Villagers from Karenar and neighbouring villages, including the parents of the deceased Manoj Hapka and Tati Pande, visit tribal activist Soni Sori and hold a press conference in Dantewada, to press for justice in their children’s murders.
05.07.2016	[Palnar Encounter] Security forces drag away Seetu Hemla of Palnar village while he was ploughing his farm, in front of family members and villagers. Family members visit Cherpal Police Post and Gangaloor Police Station but receive no help.
06.07.2016	[Palnar Encounter] Body of Seetu Hemla is returned to his family members, which shows signs of brutalization. Police release statement that they have killed a Naxalite in the forests close to Palnar, named Chaituram.
23.07.2016 and 24.07.2016	[Palnar Encounter] Volunteers of Petitioner 3 organization WSS reach the Palnar village and learn of Seetu’s execution from the villagers and

	the family members of Seetu Hemla.
24.07.2016	[Palnar Encounter] Seetu Hemla's mother, Sukli Hemla, writes a letter to the Gangaloor PS requesting the registration of an FIR against security forces for the murder of her son, copied to the District Collector and SP, Bijapur
25.07.2016	[Palnar Encounter] Petitioner organization WSS releases short report of their fact-finding trip to Palnar
08.08.2016	[Itavar Encounter] Mainu Kunjam, widow of Sukku Kunjam, submits another complaint to the police, specifically requesting registration of a complaint regarding the murder of her husband.
08.08.2016	[Andri Encounter] Sodhi Hurra, father of the child, Sodhi Sannu, sends a missing person's complaint to Gangaloor PS with help of Petitioners, and also files a complaint in respect of Kuhdami Ganga's murder with the Gangaloor PS.
	This Petition filed

BILASPUR

DATED: **COUNSEL FOR THE PETITIONERS**

IN THE HIGH COURT OF CHHATTISGARH AT BILASPUR

WRIT PETITION (Cr) NO. OF 2016

PETITIONERS:

1. Suneeta Pottam d/o Ayatu, aged around 19 years, r/o village Korcholi, Panchayat Korcholi, PS Gangaloor, Tehsil and District Bijapur, Chhattisgarh
2. Munni Pottam d/o Budhu, aged around 18 years, r/o Korcholi, Panchayat Korcholi, PS Gangaloor, Tehsil and District Bijapur, Chhattisgarh
3. Women Against Sexual Violence and State Repression (WSS)
   Through its Coordinator –
   Kalpana Mehta d/o Anand Singh Mehta, aged around 63 years, r/o 235 B Anoop Nagar, Indore 452008, Madhya Pradesh.

   Petitioners 1 and 2 being members of the Muriya Scheduled Tribe

Versus

RESPONDENTS:

1. State of Chhattisgarh, Through its Home Secretary, Mantralaya, Naya Raipur (CG), PIN - 492002
2. Chhattisgarh State Police through Special Director General of Police (Anti-Naxal Operations), Police Headquarters, Naya Raipur (CG), PIN – 492002

3. Inspector General of Police, Bastar Range, Jagdalpur, District Bastar, Chhattisgarh (CG), PIN - 494001.
4. Superintendent of Police, Bijapur District, Bijapur, CG PIN - 494444
5. Assistant Superintendent of Police, Anti-Naxal Ops, Bijapur, CG PIN - 494444
6. Central Reserve Police Force, through IGP, Chhattisgarh Sector HQR, Old Hidayatullah National Law University Building, Near PHQ, Raipur, CG, PIN - 492001

WRIT PETITION UNDER ARTICLE 226 OF THE CONSTITUTION OF INDIA

1. PARTICULARS OF THE PETITIONERS:

As mentioned in the cause title

2. PARTICULARS OF THE RESPONDENTS:

As mentioned in the cause title.

3.(A) PARTICULARS OF THE ORDER AGAINST WHICH THE PRESENT PETITION IS BEING FILED:

The present Petition is filed against several instances of arbitrary, unjust, illegal and unconstitutional extra-judicial killings of villagers under the jurisdiction of Gangaloor and Bijapur Police Stations, and their possible torture and brutalization before their murder by the security forces engaged in anti-Naxal operations of the State.

(B) SUBJECT MATTER IN BRIEF

With the intensification of the counter-insurgency campaign in South Chhattisgarh, there has been a spate of extra-judicial killings of alleged Naxalites by the police and

paramilitary forces in the villages of Bijapur District. While the security forces claim that these cases are of ambush of security forces by Naxalites and the ensuing deaths have resulted due to firing in self defence, the villagers and family members of the deceased claim that these are deaths of unarmed villagers, who have been executed in cold blood by security forces. Petitioners 1 and 2 in this PIL are young, 18 and 19 year old women from an affected village, Korcholi, who have documented four such cases of extra-judicial executions and disappearances from their village and neighbouring villages with the help of Petitioner 3, a national network of women and women's organizations opposing sexual violence and defending civil liberties. The instant petition seeks general and specific reliefs for families of the deceased and villagers in this conflict zone.

Case 1 - Karenar Village, Bijapur Kotwali PS

On 21st May 2016, Bijapur police announced that they had killed two Naxalites during an encounter with 30-35 Maoists in the jungles of Cherkanti and Karenar village, who were identified as a husband and wife couple, Tati Pande and Manoj Hapka, members of the Local Operational Squads (LOS) of the Maoists in the Darbha Division (which is more than 150 kms from the place where they were killed).

This is disputed by the mother and brother of Tati Pande, who used to reside with the deceased couple in their house in Karenar village, PS Gangaloor, District Bijapur. In sworn affidavits, the mother, Tati Bandi and the brother, Tati Ramalu, claim that the deceased couple had been living in Karenar and engaging in farmwork for the past five years. Prior to this, they had indeed joined the banned Maoist party for a period of six months to a year, but having fallen in love with each other, they decided to marry each other and leave the party. Also, the deceased Tati Pande was in poor health and required medical treatment, which also

contributed to their resolve to return to the mainstream of society.

On 20th May, 2016, at around 7-8 pm when the family had sat down for their evening meal, security forces entered the house, led by some surrendered Naxalites. They rounded up the deceased Manoj Hapka and Tati Pande, took them into their custody and forced the deceased to accompany them, telling the concerned family that they were being taken to be “surrendered” and will be released on the following morning at Gangaloor PS, District Bijapur.

However, in the morning, the family members reached Gangaloor only to find out that that two had been killed and their bodies taken to Bijapur. The bodies of the deceased were returned to the family, devoid of any clothing, and with gunshot wounds as well as stab wounds and evidently broken bones. The family members also suspect that deceased Pande had been sexually assaulted before being killed.

Some family members and villagers also found the discarded clothing of the deceased Manoj Hapka and Tati Pande in a clearing in the jungles close to village Reddi, with a lot of blood stains on the ground near it, leading them to suspect that the couple was killed there.

The villagers and the parents of the deceased, though illiterate and Gondi-speaking, have tried their level best to register their protest at the way in which their children had been killed in a brutal and inhuman way in cold-blood. When they were not able to get their complaints recorded in writing officially, they informed visiting journalists and members of a fact-finding team of the All Indian People’s Forum, about the manner in which the couple had been picked up from the village before many eye-witnesses. They also sought the help of the adivasi leader Soni Sori in their quest for justice, addressed a press conference and

contacted Petitioners no. 1 and 2, to help seek justice for their children.

Case 2 - Village Itavar, PS Gangaloor, District Bijapur

On 26th November 2015, Bijapur police announced that a Naxal had been shot dead the day before at around 5 pm, following a fierce, hour-long gun-battle between the security forces and the Naxalites in a jungle close to the village Korcholi within the jurisdiction of the Gangaloor Police Station. The name of the deceased was not released to the press.

Mainu Kunjam, wife of Sukku Kunjam, resident of Itavar village, Gangaloor PS in Bijapur District and other villagers of Korcholi aver that it was Mainu's husband, Sukku Kunjam, who was killed by the security forces in cold blood on that day. On November 24th, 2015, the deceased Sukku Kunjam, and his brother, Soma, were working in their fields in Itavar village, when security forces arrived at their village. Fearing arbitrary punishments, arrests and beatings, the two brothers, along with other able bodied men of Itavar village fled their villages.

After trying to evade the security forces for a whole day, the deceased Sukku Kunjam reached the neighbouring village of Korcholi in the morning of November 25th, 2015, where he stayed with his relative Pandu Pottam. Later on that day, the security forces also entered the village of Korcholi, camped there for the entire day. An eyewitness, Pido Pottam has sworn an affidavit that in the evening that day, the deceased Sukku Kunjam was walking in the village with Dula Pottam and Sannu Pottam, when suddenly, without any warning, gunshots were fired in their direction. The deceased Sukku Kunjam died instantly, being hit in the chest, but Dula Pottam, who was hit in his leg, and Sannu Pottam, who was unhurt, managed to run away and escape further firing. The security forces then emerged from where they were hiding in the village. The villagers of Korcholi

recognize some of the security force members as surrendered Naxalites who used to visit their villages.

The wife of the deceased, Mainu Kunjam, being a young woman with an infant child, along with the women from three villages of Itavar, Korcholi and Nendra, complained to the police when they went to Bijapur to retrieve the body of the deceased, about the fact that Sukku had been killed in cold-blood, but they were not taken seriously and their complaints were not lodged in writing. When a fact finding team of WSS, Petitioner 3, visited the village Korcholi in May 2016, the villagers informed them of this incident, and even mentioned this instance in a complaint to the police. Later on, the wife, Mainu Kunjam herself, through the help of Petitioners 1 and 2, filed a formal complaint in the police station alleging that her husband had been killed in cold blood. However, no investigation appears to have been commenced on this complaint yet.

Case 3 - Village Palnar, Police Station Gangaloor, District Bijapur

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caught him. They tied his hands behind him, and dragged him away to the nearby jungles, in full view of his family members and other villagers. The family members were also badly beaten up by the security forces, when they tried to follow the security forces to see where they were taking Seetu. The family and the villagers recognize some of the captors of Seetu as well as the assailants who beat up the family members as surrendered Naxalites who used to live in their village, and in neighbouring villages.

Although the villagers could not determine where the security forces had kept Seetu, they heard Seetu's cries coming from the jungle, where he was screaming in pain and shouting out for his mother. But this was followed by gunfire, which inhibited the villagers from going in the direction of his cries.

Seetu's mother, Sukli spent the entire day entreating the police staff at the Cherpal Post (Chowki) and the Gangaloor Police Station to give her some information about her son, but they could not help her. Seetu's wife, Lachmi Hemla, and other womenfolk of the village searched high and low for Seetu in the surrounding jungles but could not find him. In evening, while returning to the village, they saw a posse of policemen emerge from a clearing, and later on, after visiting the site where the police had been, they saw a spot where it was evident that Seetu had been hung from a tree and killed.

The villagers recovered the body of Seetu the next day from the Bijapur District Hospital. The body seemed to have several gunshot wounds and was also badly mutilated, with flesh wounds, broken bones in the legs and broken finger bones, suggesting that he was subjected to inhuman ante mortem torture.

The family, although illiterate and living in a remote village, has tried to seek justice for their slain son, but with little success. They informed a fact-finding team that reached

their village on the 22nd of July as to how Seetu had been killed, and also sent a written complaint to the Gangaloor Police Station seeking the registration of an FIR against the errant security persons who had murdered Seetu. However, they are unaware if any FIR has been registered yet, hence, they reached out to Petitioners no. 1 and 2, to seek their assistance in their quest for justice for Seetu.

Case 4 - Village Andri Harrapara, Police Station Gangaloor, District Bijapur

The villagers of Andri Harrapara have informed the Petitioners 1 and 2 that on February 16th, 2016, three days after the village celebrated the festival Gaadi Pandum, security forces came to the area and killed one villager, Kuhdami Ganga s/o Bhima and three days later, caused the disappearance of a young child, Sodhi Sannu s/o Hurra.

On Tuesday, the 16th of February 2016, the deceased Kuhdami Ganga along with two other young men of the village, had gone to the jungle to collect siyadi leaves, in preparation for a wedding the next day. The three were gathering their leaves in the jungle, when they realized that some policemen were hiding in the forest. Fearful of arbitrary arrests and detentions by police, the three started running back to the village, when the police opened fire at them, without warning or provocation. Kuhdami Ganga got hurt in the firing, and dropped down, while the other two escaped. Some of the security men in these forces have been identified by villagers.

The police continued to stay in the village for three days, during which most men of the village camped out in the jungles, fearful of the police. On the 18th of February, the men, hiding out in the jungles recovered the body of Ganga from a pit where he had fallen, but could not bring it back to the village due to the presence of policemen. Finally, the police departed on Friday morning, when the body was brought back. However, the police returned that evening.

At around 5 pm, a young child Sodhi Sannu, aged 9-10 years, was working in the tomato fields close to his house, when the security forces returned to the village. No one in the village witnessed what happened next, but there was sound of gunfire. Alarmed, the mother and a neighbor rushed to the fields, and they saw blood spots on the way, but were prevented from going further by policemen, who threatened to kill them.

The young child Sodhi Sannu has not been seen since by the villagers, who have since searched all the neighbouring jungles for any sign of him. The very next day after this incident, Sannu's parents, Hurra and Bhime also went to the Gangaloor PS to inquire about him, but obtained no information. They went to the Bijapur PS, where they were not even allowed inside. Disheartened, they finally approached the Petitioners 1 and 2 for help, and were able to file two police complaints with their assistance. However, it is not clear whether any steps have been taken to inquire into these instances yet.

These four cases document the vulnerability of people living in the villages in and around Korcholi, where Petitioners 1 and 2 reside, to arbitrary detentions, executions and disappearances at the hands of security forces, the helplessness of their families in seeking justice for these incidents, and the impunity with which the security forces commit heinous crimes against these most marginalized of populations. These cases also throw up the grave questions about the use of surrendered militants in these counter-insurgency measures, and the crimes committed by them.

Hence, the Petitioners pray for the establishment of an independent, high-powered Special Investigation Team to inquire into these four and other cases of encounters in these villages, and inter-alia, they seek a direction to immediately cease the use of surrendered militants in anti-Naxal combat operations.

(C)(I) The present Petition under Article 226 of the Constitution of India is being filed by way of Public Interest Litigation and the Petitioners have no personal interest. The petition is being filed in the interest of general public and specifically the Adivasi residents of the villages in the jurisdiction of Bijapur and Gangaloor Police Stations, who have experienced a spate of unprovoked, extra-judicial killings of ordinary, unarmed villagers, in the name of anti-Naxal operations. The present Petition seeks to guarantee the Right to Life enshrined in Article 21 of the Constitution, to all residents of the conflict torn regions of Bijapur district.

(II) Petitioners 1 and 2 are respectable and bona-fide residents of village Korcholi, PS Gangaloor, Tehsil Bijapur, District Bijapur, and are *Adivasi* people who have themselves experienced an extra-judicial execution carried out in their village of an unarmed farmer. They are public minded individuals, who being young and energetic and Hindi-speaking, bear responsibility for their fellow villagers, often representing them before authorities.

The Petitioner no. 3 is a network of women and women's organizations across India, that takes up issues of sexual violence against women and structural forms of repression. Various fact-finding teams from this organization have been visiting Bijapur district since November 2015, after a chance discovery of a case of mass sexual violence perpetrated by police and CRPF men on Adivasi women in the village of Peddagellur, Basaguda PS that has been subsequently corroborated by the National Commission of Scheduled Castes and Scheduled Tribes. It is during one of these fact-finding trips that Petitioners 1 and 2 became aware of this network, and worked together with this Petitioner organization to bring forward this case.

(III) The Petitioners are filing the present petition on their own and not at the instance of any other person or entity. The

litigation cost, including the advocate's fee and other necessary expenses are being borne by the petitioners.

(IV) The sources of information of the facts pleaded in this Public Interest Litigation are based on the sworn affidavits of villagers collected by the Petitioners and their advocates, press releases and newspaper reports of encounters in villagers obtained from public websites, received copies of applications made by villagers before several of the Respondent authorities about their grievances as highlighted in the instant Petition, fact-finding reports of different groups also obtained from public websites, and a copy of the Surrender Policy for Naxalites obtained from the Chhattisgarh Police website.

(V) The Petitioners have sent representations in this regard to all the concerned authorities and now, having no other efficacious remedy, have preferred this Petition.

(VI) To the best of knowledge of the Petitioners, no Public Interest petition raising the same specific issue is filed before this Hon'ble Court or before any other Court.

4. WHETHER CAVEAT FILED, IF YES, WHETHER COPY OF THE PETITION SUPPLIED TO THE CAVEATOR:

The Petitioners respectfully submit that no caveat has been filed to the knowledge of the Petitioners.

5. DETAILS OF REMEDY EXHAUSTED:

The Petitioners have no other alternate or efficacious remedy except by way of filing the present writ petition.

The Petitioners have sent representations in this regard to all the concerned authorities and now, having no other efficacious remedy, have preferred this Petition.

6. MATTER NOT PREVIOUSLY FILED OR PENDING WITH ANY OTHER COURT OF LAW:

There is no other matter filed or pending in any other court of law.

7. DELAY IN FILING THE PETITION, IF ANY AND ITS EXPLANATION:

The incidents have taken place between November 2015 and July 2016 and the family members of the victims and other villagers have been making efforts to seek redressal with the concerned authorities ever since. Hence there is no inordinate or unreasonable delay in filing the Petition.

8. FACTS OF THE CASE:

8.1 Petitioner no. 1, Suneeta Pottam, and Petitioner no. 2, Munni Pottam are young women of Korcholi village, 19 and 18-year old respectively, who, by virtue of being literate, Hindi and Gondi speaking, public spirited and socially conscious persons of Korcholi village, are often sought out by villagers in their own and neighbouring villages, for help in approaching authorities, for translations, and for official representations.

8.2 Petitioner no. 3 is an organization, Women Against Sexual Violence and State Repression (WSS), which is a nationwide platform of individual women as well as women's organizations, working on issues of sexual violence against women, especially in the context of structures of systemic repression since the past seven years. They have many published reports including regarding sexual violence during Singur and Nandigram movements in West Bengal; on Dalit women in Bhagana, Haryana; garment workers in Bangalore, Karnataka; sexual harassment and burning to death of teacher Itishree Pradhan in Odisha; pregnant brick kiln worker in Karimnagar, Andhra Pradesh etc. They were one of the groups to give a detailed representation before the Justice Verma Commission constituted in the wake of the Nirbhaya sexual violence case for amending the criminal laws in respect of rape.

WSS has been sending regular teams of women members to Bijapur district ever since its first fact-finding team in November

2015 stumbled upon a case of mass sexual violence and gangrape of Adivasi women in Peddagellur village by CRPF and district police forces, leading to the registration of the first-ever FIR in India under the newly amended IPC section 376(2)(c). In May 2016, WSS fact finding teams visited Korcholi village, where there was also a case of gangrape of a young adivasi woman by security forces, and during that visit, they were introduced to Petitioners 1 and 2, and also learned of the case of the extra-judicial killing of Sukku Kunjam of Itavar village, who was publicly gunned down in Korcholi village. Since then, the two young Petitioners 1 and 2, have worked with WSS, Petitioner 3 organization, to document such instances of arbitrary, extra-judicial killings carried out by security forces in the guise of anti-Naxal operations. In the instant PIL, the Petitioners are approaching the Hon'ble Court to seek specific and general reliefs for the aggrieved villagers, bereaved family members, and seek remedies to stop such killings in future. In the instant PIL, four such case studies have been documented for illustrative purposes.

Case 1 - The case of Tati Pande and Manoj Hapka, village Karenar, PS Bijapur

8.3 On 21st of May 2016, the CRPF claimed in a press release that they had achieved considerable success in "neutralizing" two dreaded "hard core" Naxalites. The CRPF Press Release states that an encounter took place in the area of Kotter and Reddy villages under PS Gangaloor, on the early morning of 21.05.2016, when armed Maoists opened indiscriminate firing on the joint operation of CRPF, CoBRA and State Police. The security forces fired back and after the firing subsided, search of the area revealed 2 dead bodies of Maoists, including one female in uniform, identified as Tati Hapka, Member of Darbha LOS (Local Operating Squad) and Manoj Hapka, Commander of Kanger Valley Darbha LOS, who was a rewardee of Rs 5 Lacs by Chhattisgarh Government and who was wanted for the infamous Jheeram Ghati incident of 25 May 2013. The Press Release by the CRPF on the website of the Ministry of Home Affairs, Government of India

dated 21.05.2016, “Two hard core Maoists were neutralized in Bijapur,” is annexed hereto as **ANNEXURE P/1**.

8.4 The Bijapur Police also gave similar information to the media. According to PTI news, the Assistant Superintendent of Police of Bijapur, Mr. IK Elesela informed that the dead Maoists were a husband-wife couple, Manoj and Tati Hapka, who were gunned down after a fierce battle in the Koter-Kerenar [sic] jungles of Police Station Gangaloor. The Hindi daily, Dainik Bhaskar reported that Manoj Hapka was a “most wanted Naxalite” and while he carried a reward of Rs. 5 lakhs, Tati Pande also carried a a reward of Rs. 1 lakh. Moreover, the news item said that the identification of the deceased was carried out by surrendered Naxlites. Copies of these news stories are annexed hereto as **ANNEXURE P/2 (Colly)**. Photos of the corpses of the dead couple, as circulated by the Bijapur to local reporters are annexed hereto as **ANNEXURE P/3**.

8.5 It bears mentioning that there is a very low possibility that in an intense gun-battle with 30-35 armed Maoists, 2 people who are killed at random turn out to be a husband-wife couple. Furthermore, it should be noted that the areas of operation of these alleged Maoists, the Darbha Valley and Kanger Valley area are at least 150 kms away from the place where the couple are claimed to been killed, and no explanation is forthcoming as to what they were doing, armed and uniformed, in an area that is so distant from their normal area of operations. Thirdly, this story of the “encounter,” suffers from credibility given that a high-ranking Commander of an LOS, carrying a reward of Rs 5 Lacs on his head, and another Naxalite with a reward of Rs 1 lac on her head, are carrying only country-made muzzle-loading guns for their protection.

8.6 It should also be pointed out that the photographs distributed by the police, supposedly taken after an encounter, display the body of a woman in a stiff, brand new uniform that does not readily show any gunshot holes. Both bodies in the photo, allegedly taken soon after their encounter, show a remarkable

absence of blood on their clothes. Also the body of the man has his legs bent in an unnatural position, with several marks on them, throwing up the possibility that the bones of the legs have been broken and these injuries can be caused by a hard and blunt object.

8.7 The police story as reported in the newspapers is contested by family members of the deceased. Tati Bandi w/o Pandu is the mother of the deceased Tati Pande @ Promila, and a long-time resident of village Karenar, Panchayat Karenar, under the jurisdiction of PS Bijapur.

8.8 In a sworn affidavit dated 09.08.2016 (annexed hereto as **ANNEXURE P/4**) Tati Bandi has stated that that her deceased daughter and son-in-law had indeed joined the banned Maoist party in their youth for a short time of one year. But having fallen in love, they had married each other, and on the entreaties of Suklu Hapka, the father of Manoj, they had left the Maoist party and taken up residence with Tati Bandi, in Schoolpara, Karenar, district Bijapur, for the past five years. Deceased Manoj Hapka's village, Cherkanti, is across the river from Karenar, and was frequently visited by the deceased couple.

8.9 Deceased Tati Pande was in delicate health, and frequently suffered from stomach ache. She had been seeking treatment for the same, and had visited the doctors of Medecins Sans Frontiers (Doctors Without Borders) at their camp at Reddi village on 10.12.2015, a card from this visit bearing the registration number R-18281/18 is attached as **ANNEXURE P/5**. Obviously "hard core" Maoists, carrying rewards on their heads, do not openly visit medical camps. Furthermore, the affidavit of deceased Pande's brother, Tati Ramalu (annexed hereto as **ANNEXURE P/6**) reveals that deceased Manoj Hapka was a hardworking farmer, who had gathered enough Mahua flowers this year to have bought two cows. Tati Pande had even been to Bijapur on 20.05.2016 to receive the bonus for gathering tendu patta leaves, just one day prior to the so-called "encounter". This gives lie to the police claim that the deceased were Maoists, active in

the Darbha valley area – instead the two were a farming couple, living in Karenar for the last five years, seeking treatment for deceased Tati Pande.

8.10 As per the events narrated in the affidavits of Tati Bandi (Annexure- . P/4) and Tati Ramalu (Annexure - P/6) Tati Pande had not been feeling well on the day of the incident – 20.05.2016, and after coming back from Bijapur, had lain down to rest due to stomach ache. Her husband, Manoj Hapka, had called over the traditional doctor, Tati Narayan, to the house to perform *guni* on Pande. At around 8 pm, the family had sat down for dinner, when a large number of security forces surrounded the house and entered it. They first took Manoj and tied his hands behind his back, then roused Pande who had been lying down, and also tied her hands behind her back. They also restrained the traditional village doctor, Narayan.

8.11 The security forces then asked Pande's mother, Tati Bandi, to collect all the clothes and other belongings of the deceased couple, and told her that the couple will be "surrendered" and the families will be given rewards. The family was asked to come to Gangaloor PS the next day to check on the couple. When the family members tried to accompany the deceased couple, they were forced to retreat due to threats of the security forces that they will be shot. Both the deceased were dressed in simple village clothes, when they were taken from home – Pande wearing a skirt, blouse and a chunni, and Manoj wearing a lungi and shirt.

8.12 The entire village is witness to the fact that the deceased couple was picked up in the late evening of 20.05.2016 from the house of Tati Bandi by security forces. Tati Bandi and her son, Tati Ramlu, who are both eye-witnesses to this incident, recognize some of the security personnel who entered their house as surrendered Naxalites – Pottam Raju who used to reside in village Pusnar, Arjun Telam s/o Bijja who used to live in Ponjer, and Jeera Hemla of Kiklelpara Gangaloor, whom the villagers knew due to their frequent visits to the area as cadre of the CPI (Maoist) party.

8.13 The next day, in the morning of the 21.05.2016, when Tati Bandi went to Gangaloor to inquire about Manoj and Tati Hapka, she was informed that they had been killed and that their bodies could be collected from the Bijapur District Hospital. She informed Suklu Hapka, the father of the deceased Manoj Hapka, and her son, Tati Ramulu, of this news and they all reached Bijapur to collect the bodies. At that time, they informed the policemen and the medical staff present of the fraudulent nature of the entire killing, but they were not taken with any level of seriousness, and their complaint was not registered.

8.14 On 21.05.2016, the bodies of Tati Pande and Manoj Hapka were returned to the Petitioners devoid of any clothing, wrapped in a plastic sheet, and with gunshot wounds as well as other types of wounds and with evidently broken bones. The bodies had a cut from the chest down to the abdomen which was evidently due to a postmortem. In addition, the body of deceased Pande had wounds at the back of her head which appeared to be due to battering with a heavy object, and the lower back also appeared to be broken. The family members suspect that Pande had been sexually abused before being killed. The body of deceased Manoj had broken bones in his legs and thighs, and also the skin on his knees and ankles was also broken.

8.15 The bodies of the deceased were cremated the following day, on the 22.05.2016. After that, some people from the villages of Karenar and Cherkanti, including Tati Ramalu, brother of the deceased Tati Pande, tried to follow the same path taken by the security forces on the night of the 20.05.2016, in order to find some clues as to how the couple was killed. Near the jungles of Reddi, they found that the shirt worn by Manoj at the time when he was taken from home was hanging from a Mahua tree, and there were stains of blood on the ground close to it. Nearby, they also found clothes of Pande lying on the ground. These clothes were brought back by the villagers, and also cremated as per their customary rites.

8.16 The family members of the deceased, though illiterate and Gondi-speaking, tried their level best to inform authorities about the fact that Pande and Manoj were falsely being accused of being active Maoists and had been killed in a brutal and inhuman way in cold-blood, and not in the heat of the battle. They tried informing the police and the medical staff that met them at Bijapur when they had gone to collect the bodies, but their complaint was not taken with any level of seriousness and not put down in writing.

8.17 From 08.06.2016 to 11.06.2016, a fact finding team of the All Indian People's Forum, comprising of the former Madhya Pradesh MLA Dr Sunilam of Samajwadi Samagam, former Jharkhand MLA and CPIML Central Committee member Vinod Singh, Kavita Krishnan, Secretary of All India Progressive Women's Association, Brijendra Tiwari of AICCTU, Amlan Bhatacharya, State Secretary of PUCL West Bengal, Advocate Aradhana Bhargava of Chhindwara, Advocate Ajoy Dutta of Kolkata and Amlendu Choudhury visited several villages South Bastar to investigate reports of human rights violations. Four of the team members also visited Karenar and Cherkanti to inquire about this encounter. The team met with family members of the deceased and other villagers, who recounted the entire episode to the visiting team. An affidavit of Kavita Krishnan, a member of this AIPF team, along with relevant excerpts from the report of this fact finding, titled "Bastar – Where the Constitution Stands Suspended" is annexed hereto as **ANNEXURE P/7.** The AIPF team also concluded that the killings of Tati Pande and Manoj Hapka occurred in a blatantly false encounter and they reported this finding as such in the press conference conducted the following day, a news report of which was carried by the daily The Hindu, on 14.06.2015, titled "Fact-finding team flags fake encounters in Bastar," annexed hereto as **ANNEXURE P/8**.

8.18 Eventually, the villagers including the sarpanch, Chaituram Modiyami, approached reporters and held a press conference in Dantewara with the help of the tribal rights activist Soni Sori on

04.07.2016, where the family members directly told the assembled media people that their children had been killed in cold blood after having been captured from home the night before. A collection of newspaper articles with these claims of the villagers are annexed hereto as **ANNEXURE P/9 (Colly)**. Finally, with the help of Petitioners no. 1 and 2, whom they know as neighbouring villagers, they were able to record their version of the story in the form of sworn affidavits, and which has led to the instant petition.

8.19 From the above, it is amply clear that the deceased Manoj Hapka and Tati Pande were not active Maoists, but a hardworking farming couple, who were trying to eke out their living by working on their families lands in Karenar village. They were picked up from their house on the pretext of getting them "surrendered" and shot in cold-blood in an extra-judicial execution. From their injuries, it appears likely that they were physically and sexually tortured before being murdered by the security forces. They were last seen alive in the company of some surrendered Naxalites whom the villagers recognize, and who can be held liable for their murders.

Case 2 - The case of Sukku Kunjam, Village Itavar, PS Gangaloor, District Bijapur

8.20 On 26.11.2015, the Bijapur police announced that a Naxal had been shot dead the day before at around 5 pm, following a fierce, hour-long gun-battle between the security forces and the Naxalites in a jungle close to the village Korcholi within the jurisdiction of the Gangaloor Police Station. The newspaper stories said that the identification of the deceased was still pending and hence did not carry any name. Different newspaper accounts reported that the SP and ASP of Bijapur had informed that the police had strong evidence pointing to the presence of a large number of Naxalites in the jungles of Gangaloor and Basaguda police station limits. Hence, a joint team of district force, including the elite District Reserve Guard, and the specialized CoBRA battalions had been dispatched to these

forests on 22.11.2015. On 25.11.2015, they had faced fire from the Naxalites, and they fired back in self-defence in a gun fight that lasted over an hour, at the end of which they found the dead body of a Naxalite during a search of the area, along with a 12 bore rifle, a *bharmar* rifle, and several small ammunitions. Although the deceased person was not identified, and the photograph shared by the police depict him as wearing an ordinary shirt, yet the police officials, as reported by these papers, make the definitive claim that the deceased was a Naxalite. A collection of newspaper stories announcing this encounter is annexed hereto as **ANNEXURE P/10 (Colly)**.

8.21 Mainu Kunjam, aged around 23 years is the wife of Late Sukku Kunjam, resident of Itavar village, Gangaloor PS in Bijapur District. She, along with villagers of Korcholi aver that it was her husband, Sukku Kunjam, who was killed by the security forces in cold blood, with no warning, and in the middle of Korcholi village in front of other villagers, and not in any jungle.

8.22 As per the sworn affidavit of Mainu Kunjam, annexed hereto as **ANNEXURE P/11** on November 24th, 2015, the entire family had been working on cutting paddy in their fields in the village of Itavar. She and the other family returned home to prepare lunch, but her husband, the deceased Sukku Kunjam, and his brother, Soma, decided to stay behind to pick up and gather the harvested paddy. Mainu Kunjam was at home when the family realized that security forces had arrived in large numbers. At that time, the deceased and his brother, fearing arbitrary punishments, arrests and beatings by security forces, decided to flee the village to the safety of the jungles, along with other able-bodied men of the village, as appears to be the practice for survival in these areas.

8.23 After the brothers left Itavar, they went to Nendra but they heard sounds of firing there, and decided not to enter that village. In the ensuing confusion, the brothers got separated. From the accompanying affidavits of Korcholi villagers, Pido Pottam (annexed hereto as **ANNEXURE P/12**) and Ayati Pottam

(annexed hereto as **ANNEXURE P/13**), it is learnt that the deceased Sukku Kunjam reached village Korcholi on the morning of 25.11.2015 around 7 am. He took shelter in the house of his relatives Pandu Pottam and his wife Ayati Pottam, where he also met other villagers including Pido Pottam.

8.24 Ayati Pottam states in her affidavit (Annexure P/13) that the deceased Sukku Kunjam reported to her that he was very hungry, not having had any meal for the last two days, and asked her to give him food. At that time, apart from Sukku and her husband Pandu, there were also her relations Dula s/o Kova and Sannu s/o Tokdu. She prepared food for all of them except Sannu who was not hungry. Then she left for harvesting paddy in the fields along with other villagers.

8.25 When Ayati and Pido Pottam were cutting paddy in their fields, around 10 am, they saw security forces approaching their village from the direction of Nendra village. On seeing them, most of the able-bodied men in the village fled to the jungles, fearing beatings and executions, and also shouted out to the womenfolk to return to the village and safeguard their homes, or else the security forces may burn them down and loot them. Thus, both Ayati Pottam and Pido Pottam returned to their respective homes. The security forces stayed in the village for the entire day.

8.26 Pido Pottam reports in her affidavit (Annexure P/12) that in the evening around 4 or 5 pm, she noticed that the deceased Sukku, along with the above-mentioned Sannu Pottam and Dula Pottam, <u>were</u> walking close to her house, when suddenly, with no warning, shots rang out and the deceased Sukku Kunjam died instantly, being hit in the chest. Dula Pottam was hit in his leg, but he managed to run away and escape further firing, along with Sannu Pottam, who was unhurt. At that time, Sukku Kunjam had been dressed in an ordinary lungi.

8.27 In the above affidavit, Pido Pottam also recounts that soon after the firing, the security forces emerged from where they had been hiding, and came to her house to pick up a strong stick for

the transportation of the dead body. When she protested about the unfair way in which Sukku Kunjam had been killed, she too was threatened with death if she spoke up too much. The security men also joked that it was after several years that they had “finally gained success in finding a man in this village, since all the men here run away as swiftly as deer.” This conversation amply illustrates the callous attitude of security forces that patrol these villages, who consider all men in these villages as sport, who can be hunted down and killed in cold-blood.

8.28 In the above affidavit, Pido Pottam goes on to identify some of the men who had come to the village along with the security forces – they are Sagar Hemla from Palnar, Teera Sannu from Pusnar, Manish from Kamkanar, Sallu Bhogam from Palnar and Mangesh Kunjam from Nendra – these are all men from surrounding villagers who used to work with the Naxalites and had come to their village earlier. Now they all work for the police.

8.29 The affidavits of the Korcholi villagers, Pido Pottam and Ayati Pottam, narrate that several village women came out to the incident site after hearing gunfire. But the security forces pushed them away and then opened indiscriminate firing in the air, at no particular target. Scared, the women retreated and some fell into a rivulet, and had to be pulled out and taken to safety. Worried about their menfolk who were still in the jungles and who could have been hurt in gunfire, no one in the village cooked dinner that night. Later on, they all learned from Pido that it was Sukku who had been killed that evening, and taken away.

8.30 On the next day, 26.11.2015, Mainu Kunjam, accompanied by womenfolk of the villages of Nendra, Korcholi and Itavar, went up to Bijapur to collect the body of her husband, Sukku Kunjam. There she complained of this cold-blooded killing at the Bijapur PS but was not taken seriously and no complaint appears to have been registered.

8.31 The women folk brought the body back themselves, carrying it in a small procession, but they were pursued by the police who followed them all the way to village Todka (about three hours

walk away from Itavar). The procession was stopped at Todka, the women were asked to congregate at the village hand-pump, where those women who were carrying the body were photographed. This kind of harassment at such a tragic and somber moment reflects the complete insensitivity and arrogance of local police, where even a funeral procession comprising of village women is the subject of suspicion and maltreatment.

8.32 The villagers of Korcholi, as well as Mainu Kunjam, the widow of Sukku, have used all opportunities available to them to voice their grievance regarding the murder of Sukku Kunjam. In May 2016, a team comprising of members of WSS, the Petitioner organization, went to the village Korcholi to investigate complaints of sexual violence by security forces, but the villagers of Korcholi also narrated the incident of Sukku Kunjam's cold-blooded killing. On 07.05.2016, villagers of Korcholi, accompanied by Petitioner no. 1 and 2, and representatives of WSS, travelled to Bijapur to lodge a complaint with the police about the various atrocities, including this instance of killing of Sukku Kunjam (a copy of this complaint has been annexed hereto as **ANNEXURE P/14**).

8.33 With the help of WSS, the villagers also presented their testimonies before a high level fact-finding team, comprising of Dr. Virginius Xaxa, Director of the Tata Institute of Social Sciences at Guwahati, Mr. EN Rammohan, former Director General of BSF, and Bela Bhatia, Social Scientist, in which they also recounted the false encounter of Sukku Kunjam. This was reported in local media, some newspaper clippings are annexed hereto as **ANNEXURE P/15 (Colly)**.

8.34 On 01.07.2016, another follow-up team went from the Petitioner organization, WSS, to Korcholi and also visited village Itavar, where they met with Mainu Kunjam, the widow of slain Sukku Kunjam. With the help of this team, the Korcholi villagers pressed for diligent investigation into their earlier complaint (the villagers' letter to the SHO of Gangaloor PS is annexed hereto as **ANNEXURE P/16**). The WSS report based on these visits, titled

“No Strangers to Violence: More stories of rape and looting in Chhattisgarh's Bijapur district,” which also documents the killing of Sukku Kunjam amongst other atrocities, is annexed hereto as **ANNEXURE P/17**.

8.35 Despite efforts of the villagers to get the police to act on the collective complaint filed on 7.5.2016, no police officer made any attempt to record the statement of the widow, Mainu Kunjam, or any other villager regarding the murder of Sukku Kunjam. Eventually, Mainu Kunjam, with the help of the Petitioners, filed a formal written complaint in the police station, dated 8 August of 2016, a copy of which is annexed hereto, along with its postal receipt, as **ANNEXURE P/18**. However, to the best knowledge of the Petitioners, no investigation has commenced on it yet, nor has any villager been informed about any magisterial inquiry instituted in the context of this encounter, as required under the guidelines established by the apex court in *PUCL and Anr v. State of Maharashtra and Ors (CRIMINAL APPEAL NO.1255 OF 1999)*. In such an opaque environment, where the security establishment is not accountable to anyone, and the villagers are helpless in getting their voices heard by the bureaucracy, the Petitioners have no option but to move this court in the instant PIL.

Case 3 - The case of Seetu Hemla, Village Palnar, Police Station Gangaloor, District Bijapur

8.36 On 06.07.2016, it was reported in the news that the previous evening, i.e. on 05.07.2016, a team of the District Reserve Guard had been patrolling the jungles of Cherpal, Kikler and Palnar, when they had an encounter with the Naxalites. The exchange of fire lasted an hour, after which a search was conducted of the area, revealing a body of an unknown Naxalite killed in this gunfire, along with one *Bharmar* rifle, one *Pitthu*, some Cordex wire, service wire, Naxalite literature and items for daily use. On identification, the body was found to be that of one Chaituram, a member of the Jan Militia. The corresponding news item from the news portal nichod.com containing this information

and the police photograph is annexed hereto as **ANNEXURE P/19**

8.37 However, this story is strongly disputed by the villagers of Palnar village, who have claimed to the Petitioners that the deceased is Seetu Hemla, aged around 25 years, a long-time resident of village Palnar, who was picked up from the village by the security forces while ploughing his fields, and later killed in cold blood. A photograph of Seetu Hemla, provided to Petitioners 1 and 2 by family is annexed hereto as **ANNEXURE P/20**.

8.38 Sukli Hemla - mother of the deceased Seetu Hemla, Lachmi Hemla - wife of Seetu Hemla, and Kamli w/o Somlu - a neighbor, narrate in their affidavits (annexed hereto as **ANNEXURES P/21, P/22 and P/23 respectively**) that the deceased Seetu Hemla was ploughing his field in the morning of 05.07.2016, along with his wife Lachmi and sister Payake. His mother Sukli and aunt Somli had just come from the house to the fields when they saw a large number of security forces suddenly emerge from the surrounding jungles and encircle him.

8.39 Three of the security personnel, whom the family members and the neighbor recognize as Sagar Hemla, Sallu Bhogam and Pandru Bhogam, who used to stay in Palnar itself, tied Seetu's hands behind his back and dragged him away towards the jungles. When the family members tried to intervene, and asked why and where Seetu was being taken, the security forces brutally assaulted them with sticks made from thick tree branches. This was witnessed by many people in the village, and the assailants were recognized as Punem Sannu from Pusnar, and Manish from Kamkanar. Lachmi, the wife of Seetu, was especially badly beaten, such that she could not even stand upright, and had to drag herself back to the house on her hands.

8.40 After receiving the beatings, the injured family members made their way back to the house and gathered other women folk from the village. Seetu's mother narrates in her affidavit that she decided to take her daughters Munni and Payake to the

Cherpal Police Post to inquire about Seetu. However, the police staff there could not offer any help.

8.41 They came back to the village and met with the other womenfolk, when they heard the voice of Seetu crying out in agony from somewhere in the jungles, calling out to his mother that he is being killed. The women rushed towards the spot from where the voice was coming, but there was sound of gunfire, and they turned back.

8.42 After this, the mother, Sukli, once again left with her daughters to seek out police help at the Cherpal Police Post, but the police staff there shouted at them for haranguing them repeatedly. They then went to Gangaloor Police Station, but also did not receive any help or information there.

8.43 Meanwhile, after the noise of gunfire had subsided, the rest of the womenfolk of the village searched the thick jungles surrounding the village for any signs of Seetu or the security forces, but could not find any. At around 6 pm, they decided to return back to the village due to the gathering darkness, when they saw the policemen emerge out of a forest on the other side of the pond from the villagers. They could not get too close to that site due to the presence of the large number of security persons, but once they had left, the villagers went there and examined it thoroughly. They found stains of fresh blood on the earth on the route that the security forces had taken, and the path lead to a clearing where boughs from two trees had been woven together to make the site for a hanging of a person. The villagers suspect that this is the place where Seetu had been hung, tortured and subsequently killed by the security forces.

8.44 The next day, Seetu’s mother, wife and other relatives went to Bijapur and found his body at the Bijapur District Hospital. The body had no clothes. There were multiple gunshot wounds, Seetu’s tongue had been cut, the bones of his legs had been broken, his legs were twisted so that his feet pointed backwards, his finger bones had been broken, his penis had been cut off and there were cuts on his entire face. The villagers have claimed to

the Petitioners 1 and 2 that the injuries clearly showed that Seetu had been brutally tortured before being killed.

8.45 The family, although illiterate and living in a remote village, had tried to approach the police on the day of the encounter itself, but the police had been totally unhelpful and completely unsympathetic to their plight. Although disheartened by the response of the police, they did not keep quiet, but informed a fact-finding team of the Petitioner organization, WSS, which reached their village on the 23.07.2016 (on their way to Korcholi to follow up on the sexual violence complaint) as to how Seetu had been killed. An affidavit of a member of this fact finding team along with the team's report is annexed hereto as **ANNEXURE P/24**. A newspaper report on the fictitious nature of this encounter is annexed hereto as **ANNEXURE P/25**.

8.46 Seetu's mother also sought help of the visiting team to send a written complaint to the Gangaloor police station, copied to Respondent no. 4, the Superintendent of Police Bijapur, and the Collector of Bijapur, seeking punishment of the errant policemen who had executed her son. A copy of this written complaint, received at the SP and Collectors office and with postal receipt to Gangaloor PS, is annexed hereto as **ANNEXURE P/26**.

8.47 Despite these efforts, the family members are unaware of any investigation into their complaint. They have thus reached out to Petitioners no. 1 and 2 in order to seek their help in their quest for justice for Seetu and the common goal of stopping such occurrences in the future. Hence, this instant Petition.

Case 4 - The case of Kuhdami Ganga and Sodhi Sannu, Village Andri Harrapara, Police Station Gangaloor, District Bijapur

8.48 The villagers of Andri Harrapara have informed the Petitioners 1 and 2 that on 16.02.2016, three days after the village celebrated the festival Gaadi Pandum, security forces came to the area and killed one villager, Kuhdami Ganga s/o

Bhima (aged around 25 years) and three days later, caused the disappearance of a young child, Sodhi Sannu s/o Hurra.

8.49 Sukhram Kadati, an uncle of the diseased Kuhdami Ganga, and Sodhi Hurra, father of the disappeared 9-10 year old child Sodhi Sannu, narrate the unfolding of events around those dates in their affidavits annexed hereto as **ANNEXURES P/27** and **P/28**.

8.50 According to the above affidavits, on Tuesday, 16.02.2016, preparations were afoot in the village for the wedding of Kunjam Linga, which was to happen the next day, Wednesday, 17.02.2016. On that day, the deceased Kuhdami Ganga along with the deponent Sukhram Kadati and another young man from their village, Kowasi Bhima, had gone to the jungle to collect *siyadi* leaves, used for making plates etc for the wedding meal. The jungle where they had gone was some distance from their homes, taking them about half an hour of brisk walking to get there.

8.51 The three were gathering leaves in the jungle, when Sukhram Kadati saw that some policemen were hiding in the forest. He immediately alerted his companions and since the security forces are notorious for picking up young men on fabricated charges, they all started running back to the village. However, the police started firing at them. Sukhram narrates in the said affidavit (Annexure A/27) that the police firing was so loud that his ears started ringing and he could not hear anything else. After running, he reached a clearing when he realized that Ganga was no longer with them, and he must have been hurt in the firing.

8.53 On hearing the sound of gunfire, most men fled from the village into the jungles, as appears to be the practice in these villages. Sukhram and his companion, Kowasi Bhima, also only made it back to the village to inform them of what had happened to Ganga, before fleeing again to the jungles. The forces stayed in and around the village for all of Wednesday and Thursday, due to

which, the wedding was cancelled, and all the festive liquor and other preparations made for the wedding were laid waste.

8.54 On Thursday, Sukhram, hiding with other villagers in the jungles, tried to search for Ganga. Sodhi Hurra also joined them. They reached the spot where the three had been gathering leaves, and a little farther away, they found the dead body of Ganga in a small pit, which showed wounds of gunshots, but was already quite decomposed. They could not take the body back to the village that day due to the presence of security forces in the village.

8.55 Sukhram Kadati, in his affidavit (Annexure P/27) identifies two of the security men involved in the searching party that came to his village that day – Madhu of Karremar village and Badru of Pusnar village.

8.56 On Friday, 19.02.2016, the forces finally departed from the village, so that the body of Ganga could be brought back from the jungles, which was already in an advanced stage of decomposition.

8.57 On Friday evening, at around 5 p.m. Sodhi Hurra's young son, Sannu, aged 9-10 years was working in the tomato fields close to his house, while his wife, Bhime, and and two younger children were in his house. Suddenly, the police forces again returned to the village from the direction of Purangil village. The villagers heard the sound of some gunfire.

8.58 On hearing this noise, Bhime, worried about the safety of her child immediately left the house, taking her neighbor Kunjam Rambati with her, to proceed towards the fields. Both of them saw that fresh blood had been spilled on the route, but they were stopped from proceeding further by policemen. They saw that the police had cut some branches of a tree as if to prepare to stow away some body, but when Bhime and Rambati tried to go further to see who was being carried away, the police threatened them them that they too would be killed. Scared, they were

forced to retreat back to their houses. The security forces also departed from the village that night.

8.59 The parents have not seen their child, Sannu, since that day. After Sannu did not return home on Friday night, the next morning, both Hurra and his wife, Bhime, along with another villager, Kalmu Lakme, went to the Gangaloor Police Station to inquire about their child. However, the police staff there had no knowledge of him. From Gangaloor, they went to the Bijapur Police Station, but at Bijapur these villagers were not even allowed to enter the police station, and no one was available to help them.

8.60 On Sunday, the entire village of Andri Harrapara got together to hunt for the young child Sannu, but they could find no evidence of him or his dead body in any of the jungles surrounding their village.

8.61 Much later, the villagers of Andri heard from a policeman in Sawnar who had been with the search and patrol team that had come to Andri on the day of the incident, that Sannu had been killed in gunfire and that the police party had taken his body and buried it in the land between two streams. But nothing definitive had been told to the parents from any source, and they have no news of either the child or his dead body. They are still waiting for some information of their child, dead or alive.

8.62 After being unsuccessful in getting themselves heard at the Bijapur police station, the parents of the child Sannu contacted Petitioners 1 and 2 for help, and with their assistance, were able to file a missing person's complaint at the Gangaloor Police Station on 8.8.2016, with a copy to the SP, Bijapur and District Collector, Bijapur. A copy of this complaint is annexed hereto as **ANNEXURE P/29**. At the same time, Sodhi Hurra also filed a complaint regarding the extra-judicial execution of Kuhdami Ganga, since Ganga's only surviving family member - his father - is old and infirm, and incapable of walking all the way to file the complaint. The complaint regarding Kuhdami Ganga's murder, dated 8.8.2106 is annexed hereto as **ANNEXURE P/30**. The

Petitioners are not aware of any action taken by the police following these complaints.

8.63 In all the instances above, it is evident that police and the accompanying paramilitary forces are carrying out arbitrary executions of villagers in the name of anti-Naxal operations, and the affected families appear to have little recourse to the complaint mechanism of the police. Oral complaints of illiterate villagers are not even being recorded at the police stations, and when affected families go there after having lost a beloved one, or to inquire about a missing member, they are just scolded for troubling the police and sometimes not even allowed inside. This attitude of utter callousness and insensitivity towards human lives permeates all levels of officialdom and is also exhibited when bodies are returned to the family members, chopped and mutilated, stripped and wrapped in plastic sheets, and sometimes not even properly stitched up after the post mortems.

8.64 In all the above circumstances, to the best knowledge of the Petitioners, no FIR has been lodged against the police/ security forces following the incident, nor efforts made by any investigating agency to record the statements of the family members or other villagers, nor have any police men or security officers been made to surrender arms following their role in an encounter, as required under guidelines established by the NHRC and also set down by the apex court in *PUCL and Anr v. State of Maharashtra and Ors (CRIMINAL APPEAL NO.1255 OF 1999)*. In fact, press releases on police websites and reports in the newspapers indicate strong support of these extra-judicial killings by senior police officers, where these killings are described as “neutralizations” (see Annexure P/1) and “successes” of the Anti-Naxal Operations.

The NHRC guidelines also lay down that when a family member or eye witness questions the veracity of an encounter, it is mandatory to include their testimony in the magisterial enquiry conducted, however despite it being public knowledge that these encounters are being questioned, little effort has been made by

the civil administration to record the testimonies of the family members or eye witnesses.

8.65 The cases documented above also highlight the role of surrendered Naxalites and the infamous District Reserve Guard unit of the police force, in committing these atrocities. The District Reserve Guard is a relatively new unit of the police force, comprised of surrendered militants and adivasi youth. In almost all the cases highlighted in the instant petition, the policemen who have identified and sought out the deceased victims, who have questioned the families and threatened them, are tribal policemen from nearby villages, earlier feared by these villagers as Naxalites, but who are now working with the police force. These surrendered militants have many of their own reasons for settling scores with these villagers, arising out of years of intimacy in working with them in varied roles – first as a neighbouring villager, then as a Naxalite and now as police. The dependence of the anti-Naxal operations on the intelligence provided by these surrendered militants, to the extent of identifying them and killing them, is a dangerous trend which is not only illegal but is wholly unjustifiable in any civilized society operating under the rule of law, and is also contrary to the landmark Salwa Judum order pronounced in the case of *Nandini Sundar and Ors v. State of Chhattisgarh and Ors (W.P.C. No. 250 of 2007, judgment delivered July 5, 2011)*. Both nationally and internationally the use of surrendered militants in operations has been shown that they have been the most brutal, unscrupulous and malicious of forces, and guilty of very serious violations of human rights.

8.66 The above cases also highlight the sheer helplessness of the family members in seeking redressal in cases of such illegal extra-judicial killings. Being illiterate and conversant only in Gondi – a language not spoken by the majority of the police and paramilitary personnel, the family members are unable to submit written complaints, and their oral submissions are never recorded in writing at police stations. In all the above instances, the family members have tried their best to use the means available to

them, to seek justice – seeking help of visiting journalists and fact-finding teams, seeking political help, and addressing press conferences. The instant PIL by the Petitioners is also a continuation of the effort by these villagers and families to seek justice in the documented cases of false encounters, and to ensure that such occurrences are minimized in future.

9. GROUNDS URGED:

9.1 For the reason that all the Respondent Authorities fit squarely within the ambit of Article 226 of the Constitution against whom writs lie on establishment, before this Hon'ble Court of Law, on breach and violation of their sanguine sovereign and Constitutional duties and obligations.

9.2 For the reason that these cases depict the complete breakdown of the law and order machinery in the district of Bijapur, where innocent, unarmed villagers are being gunned down in extra-judicial killings by security forces with complete impunity, and with, seemingly, no departmental or judicial supervision, in gross violation of the most fundamental of all rights – the Right to Life guaranteed in Article 21 of the Constitution.

9.3 For the reason that the basic minimum guarantee of a functioning democracy – that a person's complaint must be registered by the police department, irrespective of the status of the complainant or the accused – is not being met when the most vulnerable of populations, the illiterate, Gondi-speaking, Adivasis go to the police station to report heinous crimes such as extra-judicial executions carried out by security forces. No FIRs are being registered at the instance of the family members, and no criminal investigations are being carried out against the police or paramilitary forces. Magisterial inquiries and NHRC investigations, if they are conducted at all, are merely for purposes of paperwork, involving the villagers and family members only

minimally, and are content to simply record the versions provided by the police and paramilitary forces.

9.4 For the reason that the use of surrendered Naxalites in these operations and encounters is contrary to the Chhattisgarh state Surrender Policy of Naxalites dated 16 November, 2015, (annexed hereto as **Annexure P/31**), where it is explicitly stated that surrendered Naxalites should give up on all acts of violence. Article 2A (III) (translated into English) states that -

> "2 A (III) The principle behind the rehabilitation of a Naxalite is that he will abjure violent activities, and participating in the mainstream of society, he will work towards establishment of peace in the state, which can then be emulated by other Naxalites."

A bare reading of the above makes it clear that the guiding principle of the Surrender Policy of the Chhattisgarh State is that an ex-Naxalite who has surrendered should completely abjure from all forms of violent activities, even those that are seemingly on behalf of the state. The current practice, in which the very people who have been terrorizing the villagers earlier as Naxalites are then sent into the same villages, armed by the state with lethal weapons, but this time as representatives of the state - is counterproductive for purposes of establishing lasting peace in a strife-torn area, and contrary to the above principle from the Surrender Policy.

9.5 For the reason that the policy of enrolling surrendered militants into the District Reserve Guard which is at the forefront in all these documented encounters, is in violation of the Supreme Court judgment in the *Nandini Sundar and Ors v State of Chhattisgarh WPC 205 of 2007 (Judgment delivered 5 July 2011).* In this case, the Supreme Court, in the context of tribal youth from families affected by Naxalite violence appointed as Special Police Officers, observed that –

> "51. Furthermore, the fact that many of those youngsters may be actuated by feelings of revenge, and reasonably

expected to have a lot of anger, would militate against using such youngsters in counter-insurgency activities, and entrusted with the responsibilities that they are being expected to discharge. In the first instance, it can be easily appreciated that given the increasing sophistication of methods used by the Maoists, counter-insurgency activities would require a cool and dispassionate head, and demeanour to be able to analyze the current and future course of actions by them. Feelings of rage, and of hatred would hinder the development of such a dispassionate analysis. Secondly, it can also be easily appreciated that such feelings of rage, and hatred, can easily make an individual highly suspicious of everyone. If one of the essential tasks of such tribal youth as SPOs is the identification of Maoists, or their sympathizers, their own mental make up, in all probability would or could affect the degree of accuracy with which they could make such identification. Local enmities, normal social conflict, and even assertion of individuality by others against over-bearing attitude of such SPOs, could be cause to brand persons unrelated to Maoist activities as Maoists, or Maoist sympathizers. This in turn would almost certainly vitiate the atmosphere in those villages, lead to situations of grave violation of human rights of innocent people, driving even more to take up arms against the state.

"52. Many of these tribal youngsters, on account of the violence perpetrated against them, or their kith and kin and others in the society in which they live, have already been dehumanized. To have feelings of deep rage, and hatred, and to suffer from the same is a continuation of the condition of dehumanization. The role of a responsible society, and those who claim to be concerned of their welfare, which the State is expected to under our Constitution, ought to be one of creating circumstances in which they could come back or at least tread the path towards normalcy, and a mitigation of their rage, hurt, and

desires for vengeance. To use such feelings, and to direct them into counterinsurgency activities, in which those youngsters are placed in grave danger of their lives, runs contrary to the norms of a nurturing society. That some misguided policy makers strenuously advocate this as an opportunity to use such dehumanised sensibilities in the fight against Maoists ought to be a matter of gravest constitutional concerns and deserving of the severest constitutional opprobrium.

“74. Both the Union of India, and the State of Chhattisgarh, have sought to rationalize the use of SPOs in Chhattisgarh, in the mode and manner discussed at length above, on the ground that they are effective in combating Maoist/Naxalite activities and violence, and that they are "force multipliers." As we have pointed out hereinabove, the adverse effects on society, both current and prospective, are horrific. Such policies by the State violate both Article 14 and Article 21, of those being employed as SPOs in Chhattisgarh and used in counter-insurgency measures against Maoists/Naxalites, as well as of citizenry living in those areas. The effectiveness of the force ought not to be, and cannot be, the sole yardstick to judge constitutional permissibility. Whether SPOs have been "effective" against Maoist/Naxalite activities in Chhattisgarh it would seem to be a dubious, if not a debunked, proposition given the state of affairs in Chhattisgarh. Even if we were to grant, for the sake of argument, that indeed the SPOs were effective against Maoists/Naxalites, the doubtful gains are accruing only by the incurrence of a massive loss of fealty to the Constitution, and damage to the social order. The "force" as claimed by the State, in the instant matters, is inexorably leading to the loss of the force of the Constitution. Constitutional fealty does not, cannot and ought not to permit either the use of such a force or its multiplication. Constitutional propriety is not a matter of throwing around arbitrarily selected, and inanely used, phrases such as

> "force multipliers." Constitutional adjudication, and protection of civil liberties, by this Court is a far, far more sacred a duty to be swayed by such ...arguments and justifications." [Emphasis added.]
>
> Based on these observations, the Supreme Court gave the following order –
>
> "75. We order that:
>
> (i) The State of Chhattisgarh immediately cease and desist from using SPOs in any manner or form in any activities, directly or indirectly, aimed at controlling, countering, mitigating or otherwise eliminating Maoist/Naxalite activities in the State of Chhattisgarh;..."

The use of SPOs in the earlier Salwa Judum case is comparable to the use of surrendered Naxalites in DRG units in the present scenario, and the ratio of the apex court arguing that the use of SPOs is contrary to the Constitutional duty of the state, also holds in the instant case vis-à-vis the use of surrendered militants in police operations. Much as the SPOs described in the above order, the surrendered militants too have intense feelings of rage and enmity against their former colleagues or opponents, which clouds their judgment and hinders cool and dispassionate deliberation. Extended exposure to intense violence as Naxalites also tends to dehumanize these ex-Naxalites, just like the SPOs before them, and to use them against their former colleagues or opponents in the villages where they once operated in as Naxalites, is a continuation of this dehumanization, rather than an effort to integrate them back into the mainstream and to mitigate their rage, enmity and thirst for vengeance.

9.5 For the reason that the current Surrender Policy for Naxalites, dated 16 November, 2015, followed by the Chhattisgarh state incentivizes the surrendered Naxalites to take active part in the ongoing campaign to eradicate Naxalites, and hence is contrary to the spirit of the Supreme Court ruling mentioned above in the case of *Nandini Sundar and Ors v State*

of Chhattisgarh WPC 205 of 2007 (Judgment delivered 5 July 2011). Article 2A(IV)(5) on page 2 of the said policy clearly lays down that the amount of benefits for which a surrendered Naxalite is eligible, is determined in part by his participation in the campaign to eliminate Naxalites. Furthermore, Article 20 on page 9 of this policy also states that if a surrendered Naxalite has prior criminal cases registered against him, then the government may decide to end these cases on considering his contribution towards the campaign to uproot Naxalites.

Such incentivization or rewarding of these surrendered militants especially for their participation in encounters, is also contrary to the guidelines for dealing with encounter deaths issued by the Hon'ble Supreme Court in *PUCL and Anr v. State of Maharashtra and Ors (CRIMINAL APPEAL NO.1255 OF 1999)* where it states that

> "(15) No out-of-turn promotion or instant gallantry rewards shall be bestowed on the concerned officers soon after the occurrence [of an encounter]."

9.6 For the reason that the state has an expressed interest in encouraging militants to give up arms, to return to the mainstream of society, and to take up regular vocations. Hence, a case like that of Tati Pande and Manoj Hapka, where ex-militants who have voluntarily given up the militant way of life, and have returned to the mainstream of society of their own free will and without utilizing any state incentives, are picked up on the pretense of "surrendering" them, and are killed in cold blood – gives a body blow to the avowed state objective of encouraging militants to give up militancy. Such cases need to be investigated with great diligence and the accused brought swiftly to justice.

9.7 For the reason that the situation described in this petition regarding the villages of South Bastar (especially in the cases of Itavar and Andri encounters), where the mere appearance of security forces in a village causes all able-bodied men from that village to flee into the jungles for the fear of arbitrary detentions, beatings and even executions, speaks to the complete

breakdown of the law and order situation in that area, the total alienation of the local population from the law enforcement machinery, and the population's complete lack of confidence in the criminal justice system. The entirety of the population in these villages lives in sheer terror of security forces, preferring to spend days on end in forests, often without food or adequate cover (illustrated in the case of Itavar and Andri) and even forgoing significant village events such as weddings and funerals (as illustrated in the case of Andri) when security forces enter their villages. However, the ensuing events documented herein, where unarmed villagers were actually killed by these security forces in extra-judicial executions, are a sad commentary on why the villagers are justified in their terror. There is an urgency with which confidence-building measures need to be undertaken in these areas, and the population's confidence in the legal processes needs to be restored, the primary one among them is to ensure that justice is done to families who have lost a loved one in fake encounters.

9.8 For the reason that the encounters documented above in Karenar and Palnar strongly suggest the possibility of gross torture and brutalization of deceased victims prior to their death. Villagers and family members have described the bodies having broken bones and chop wounds, which cannot be obtained in the course of an ordinary gun-fight in a jungle, as claimed by the police.

9.9 For the reason that the affidavits tendered by villagers show that some of the same surrendered militants (viz. Sagar Hemla, Sallu Bhogam, Teera/ Punem Sannu) are participating in different cases of encounters. Hence it is clear that their participation in an encounter has not lead to their surrender of arms, their removal from active combat, or any other disciplinary action, as mandated by the Hon'ble apex court in *PUCL and Anr v. State of Maharashtra and Ors (CRIMINAL APPEAL NO.1255 OF 1999).*

10. RELIEFS SOUGHT:

It is therefore prayed that this Hon'ble Court be pleased to:-

i) Issue a writ of mandamus or any other writ, order or direction in the nature of mandamus to Respondent no. 1 to immediately institute a high-powered Special Investigative Team (SIT) comprising of police officers, not associated with Anti-Naxal Operations, and monitored by this Hon'ble Court, to investigate the instances of extra judicial executions documented in this PIL, and all other instances of encounters that have happened in Bijapur and Gangaloor Police Stations, within the past year, and thereafter to prosecute the offenders in accordance with law.

ii) Issue a writ of mandamus or any other writ, order or direction in the nature of mandamus to Respondent No. 2 to furnish pertinent details such as copies of the FIR, Post-Mortems, copies of the reports sent to the NHRC, chargesheets if any, to the Petitioners and the victim's families in the cases of the encounters mentioned in the instant petition.

iii) Issue a writ of mandamus or any other writ, order or direction in the nature of mandamus to Respondent No. 2 to immediately cease the deployment of the following policemen (who have all been mentioned by villagers as participating in encounter killings) in active field operations, pending clarification of their role in these encounters by the above mentioned high-powered SIT-

Policeman Named	**Village in which Encounter Occurred**
Pottam Raju from village Pusnar	Karenar
Arjun Telam s/o Bijja from Ponjer	Karenar
Jeera Hemla from Kiklelpara Gangaloor	Karenar

Policeman Named	**Village in which Encounter Occurred**
Sagar Hemla from village Palnar	Korcholi, Palnar
Punem (Teera) Sannu from village Pusnar	Korcholi, Palnar
Manish from Kamkanar	Korcholi
Sallu Bhogam from Palnar	Korcholi, Palnar
Mangesh Kunjam from Nendra	Korcholi
Pandru Bhogam from Palnar	Palnar
Manish from Kamkanar	Palnar
Madhu of Karremar village	Andri
Badru of Pusnar village	Andri

iv) Issue a writ of mandamus or any other writ, order or direction in the nature of mandamus to all Respondents to immediately cease the use of surrendered militants in active combat missions, including search parties, patrolling missions and area domination exercises.

v) Issue a writ of mandamus or any other writ, order or direction in the nature of mandamus to Respondent no. 1, i.e. the State of Chhattisgarh, to revise the Surrender Policy, removing incentives for surrendered Naxalites to participate in campaigns to eliminate Naxalites, in order to make it consistent with the guidelines issued by the Apex Court in *PUCL v. State of Maharashtra (2014).*

vi) Direct the respondents to pay compensation to the families of the victims as deemed fit by this Hon'ble Court.

vii) Any other Order as this Hon'ble Court may deem fit and appropriate in the light of the facts and circumstances mentioned hereinabove.

AND FOR THIS ACT OF KINDNESS THE PETITIONERS SHALL AS IN DUTY BOUND SHALL EVER PRAY.

BILASPUR

DATED: **COUNSEL FOR THE PETITIONERS**

CERTIFICATE

It is certified that due care has been taken in the present petition to comply with the provisions of Chhattisgarh High Court Rules.

BILASPUR

DATED: **COUNSEL FOR THE PETITIONERS**

IN THE HIGH COURT OF CHHATTISGARH AT BILASPUR

WRIT PETITION (PIL) No. /2016

PETITIONERS: Suneeta Pottam & Others

VERSUS

RESPONDENTS: State of Chhattisgarh & Others

AFFIDAVIT

I, Suneeta Pottam, daughter of Ayatu, aged about 19 years, resident of village Korcholi, Gram Panchayat Korcholi, PS Gangaloor, Tehsil Bijapur, District Bijapur, Chhattisgarh do solemnly swear and depose as follows:

1 That I am the Petitioner No. 1 in the matter above-mentioned and am as such competent to swear this affidavit being aware of the facts and circumstances of the case and I have been duly authorized by the other Petitioners to swear on this affidavit on their behalf.

2 That the contents of the accompanying Writ Petition from the Synopsis, List of Dates and paragraphs 1 to 9 of this Petition are true and correct to the best of my knowledge and belief and as per legal advice receive by me.

3 The contents of accompanying Writ Petition (PIL) have been read out and explained to me in Hindi and I have understood the same.

4 That the accompanying Annexures are true copies of their respective originals.

DEPONENT

Verification

I, Suneeta Pottam, the deponent above named, do hereby verify that the contents of the above affidavit are true and correct to the best of my knowledge and belief, that no part of it is false and nothing material has been concealed therefrom.

Verified at **.....** on this **.....** day of **.....**, **2016** at Bilaspur.

DEPONENT

IN THE HIGH COURT OF CHHATTISGARH AT BILASPUR

IA No. …….. of 2016

in

WRIT PETITION (PIL) No. /2016

PETITIONERS: Suneeta Pottam & Others

VERSUS

RESPONDENTS: State of Chhattisgarh & Others

APPLICATION FOR INTERIM RELIEF

The above named Petitioners respectfully submit as hereunder:-

1. That the instant Petition has been filed because the Respondent authorities, in complete breach of legal and Constitutional duties to protect and safeguard peaceful populations, and in violation of due process of law, have conducted unprovoked and illegal extra-judicial killings of villagers in the villages of Karenar, Korcholi, Palnar and Andri, all within the Tehsil and District of Bijapur. Not only did the deceased villagers pose no threat to anyone at the time of their execution, but the Respondent authorities have also failed to investigate these crimes and provide relief to the bereaved families. The facts and grounds of the main Petition, and the annexures, are not being repeated here for the sake of brevity, and may be considered to be a part of the instant application.

2. Petitioner no.s 1 and 2, are public - minded young women, who have encouraged the families of the victims to come forward, register their complaints against these extra-judicial killings, and seek justice before this Hon’ble Court. In doing so, they have been subject to harassment by the Respondent no. 2, the Chhattisgarh state police.

3. On 07.05.2016, the Petitioners had organized people from their village, Korcholi, to lodge a complaint against police atrocities in their village including an instance of gangrape and the above-mentioned instance of cold-blooded of Sukku Kunjam (this complaint is annexed in the main petition as **Annexure P/15**). On 01.07.2016, they traveled with some villagers and a visiting team on behalf of Respondent no. 3, WSS, to Gangaloor PS to follow up on this case, and insist on its full investigation (this letter in annexed in the main petition as **Annexure P/16**). At that time, Petitioners 1 and 2 were threatened by the police personnel present at the Police Station that if they continued to associate with human rights activists, they would be in trouble. The details of Petitioner no. 1 were also noted down by the police that day. Since then, they have faced steadily increasing harassment.

4. On 07 and 08.08.2016, Petitioners 1 and 2 had stayed for two days at the house of their former teacher Pandu Tati, when they came to Bijapur to facilitate the recording of information and villagers' affidavits needed for the instant petition. The very next day, on 09.08.2016, a large number of policemen visited Tati's house, inquiring after the Petitioners and warning him not to host these Petitioners again.

5. The Petitioners have learned that since that day, regular door-to-door checks are being conducted by the police in that neighbourhood, asking after the whereabouts of the Petitioners 1 and 2. This has created an atmosphere of fear in the neighbourhood, and Petitioners have been advised by the residents there not to stay there anymore, as they fear that the Petitioners will be picked up by the police.

6. The Petitioners have been served no notice by the Police and are not aware of any reason why the Police are searching for them. They suspect that the reasons why the Police are pursuing them so persistently lie in the fact that the Petitioners are helping villagers register complaints alleging police brutality, and that the

Petitioners have been working on this instant Petition highlighting atrocities committed by the Bijapur Police.

7. It is respectfully submitted that some of the police personnel and surrendered Naxalites identified and named in the villagers' complaints and affidavits, originally hail from villages surrounding Korcholi village, where Petitioners 1 and 2 live, and these police personnel are active in operations in the area, thus making Petitioners 1 and 2 particularly vulnerable given the nature of the allegations made. The Petitioners 1 and 2 fear that they may also be eliminated by these accused policemen.

8. In a similar manner to the Petitioners, the villagers who have sworn affidavits which have been annexed in the instant petition, including family members of victims and eye witnesses of police excesses, are similarly vulnerable to police harassment and brutality.

PRAYER

It is, therefore, respectfully prayed that this Hon'ble Court may be pleased to:

i. Stay the Respondents from any further harassment of Petitioners no. 1 and 2, and of the villagers who have sworn affidavits annexed to this petition.

ii. Direct Respondent no. 2 to present before the Hon'ble High Court any information available with the police requiring Petitioners 1 and 2, or of any villager who has sworn an affidavit presented with this instant Petition, to present themselves at a police station,

iii. Direct Respondent no. 2 to inform the Hon'ble High Court prior to taking any action against Petitioner no. 1 and 2, or any of the villagers who have sworn affidavits annexed to this instant Petition, and

iv. Pass such other orders as may be deemed fit in the facts and circumstances of this case.

AND FOR THIS ACT OF KINDNESS THE APPLICANTS AS IN DUTY BOUND SHALL EVER PRAY.

BILASPUR

DATED: **COUNSEL FOR THE PETITIONERS**

IN THE HIGH COURT OF CHHATTISGARH AT BILASPUR

WRIT PETITION (PIL) No. /2016

PETITIONERS: Suneeta Pottam & Others

VERSUS

RESPONDENTS: State of Chhattisgarh & Others

AFFIDAVIT

I, Suneeta Pottam, daughter of Ayatu, aged about 19 years, resident of village Korcholi, Gram Panchayat Korcholi, PS Gangaloor, Tehsil Bijapur, District Bijapur, Chhattisgarh do solemnly swear and depose as follows:

1. That I am the Petitioner No. 1 in the matter above-mentioned and am as such competent to swear this affidavit being aware of the facts and circumstances of the case and I have been duly authorized by the other Petitioners to swear on this affidavit on their behalf.
2. That the contents of the accompanying Application for Interim Relief from Paragraphs 1 to 8 of this Application are true and correct to the best of my knowledge and belief and as per legal advice receive by me.
3. The contents of accompanying Writ Petition (PIL) have been read out and explained to me in Hindi and I have understood the same.

DEPONENT

Verification

I, Suneeta Pottam, the deponent above named, do hereby verify that the contents of the above affidavit are true and correct to the best of my knowledge and belief, that no part of it is false and nothing material has been concealed therefrom.

Verified at **.....** on this **.....** day of **.....**, **2016** at Bilaspur.

DEPONENT

IN THE HIGH COURT OF CHHATTISGARH AT BILASPUR

WRIT PETITION (PIL) NO. /2016

PETITIONER Suneeta Pottam and Others

VERSUS

RESPONDENTS State of Chhattisgarh and Others

ADDITIONAL AFFIDAVIT IN COMPLIANCE WITH RULE 79(4) OF THE HIGH COURT OF CHHATTISGARH RULES.

I, Suneeta Pottam, daughter of Ayatu, aged about 19 years, resident of village Korcholi, Gram Panchayat Korcholi, PS Gangaloor, Tehsil Bijapur, District Bijapur, Chhattisgarh do solemnly affirm and declare as under:

1 That I am the Petitioner No. 1 in the instant Public Interest Litigation, am fully conversant with the facts and circumstances of the case, am competent to swear this affidavit, and I have been duly authorized by the other Petitioners to swear on the same on their behalf.

2 That the instant Public Interest Litigation has not been filed for any personal gain or raising any personal grievance.

3 That the instant Public Interest Litigation has not been filed for any private ulterior oblique motive or for any extraneous consideration.

4 That the instant affidavit is being filed in compliance with Rule 79(4) of the High Court of Chhattisgarh Rules (Amended).

VERIFICATION

I, Suneeta Pottam, the above named deponent, do hereby solemnly affirm that the contents of paras 1 to 4 above are true to my personal knowledge.

Verified on this ____ day of September, 2016 at Bilaspur (C.G.)

DEPONENTIN THE HIGH COURT OF CHHATTISGARH AT BILASPUR

IA No. …….. of 2016

in

WRIT PETITION (PIL) No. /2016

PETITIONER Suneeta Pottam and Others

VERSUS

RESPONDENTS State of Chhattisgarh and Others

APPLICATION FOR WAIVER OF LOCUS STANDI RULE

The petitioner above named most respectfully showeth:

1. That the instant PIL is being preferred praying for orders/directions by this Hon'ble Court to the Respondent authorities to ensure that illegal and unconstitutional extra-judicial killings of innocent, non-combatant adivasi populations in Bijapur district are investigated promptly, diligently and in an unbiased manner.

That the present petition under Article 226 of the Constitution of India is being filed by way of public interest litigation and the petitioner is filing it on behalf of a class of persons namely the adivasi villagers of district Bijapur, living in insurgency affected areas, and being affected by frequent counter-insurgency operations, who are economically and socially backward and not highly educated.

2. Petitioners 1 and 2 are respectable and bona-fide residents of village Korcholi, PS Gangaloor, Tehsil Bijapur, District Bijapur, and are *Adivasi* people who have themselves experienced an extra-judicial execution carried out in their village of an unarmed farmer. They are public minded individuals, who being young and energetic and Hindi-speaking, bear responsibility for their fellow villagers, often representing them before authorities.

Petitioner no. 3 is a network of women and women's organizations across India, which takes up issues of sexual

violence against women and structural forms of repression. Various fact-finding teams from this organization have been visiting Bijapur district since November 2015, after a chance discovery of a case of mass sexual violence perpetrated by police and CRPF men on Adivasi women in the village of Peddagellur, Basaguda PS. It is during one of these fact-finding trips that Petitioners 1 and 2 became aware of this network, and worked together with this Petitioner organization to bring forward this case.

3. The sources of information of the facts pleaded in this Public Interest Litigation are the following:-

(i) Sworn affidavits of villagers collected by the Petitioners and their advocates,

(ii) Press releases and newspaper reports of encounters in villagers obtained from public websites,

(iii) Received copies of applications made by villagers before several of the Respondent authorities about their grievances as highlighted in the instant Petition,

(iv) Fact-finding reports of different groups also obtained from public websites,

(v) A copy of the Surrender Policy for Naxalites obtained from the Chhattisgarh Police website.

4. That the Petitioners are filing this petition bonafide in the public interest. The Petitioners are filing this petition on their own and not at the instance of any other person. The litigation cost including the advocate fee etc is being borne by the Petitioners themselves.

PRAYER

In the light of above facts and circumstances, the Petitioners pray that the rule of locus standi may kindly be waived and the instant petition be entertained as a Public Interest Litigation.

BILASPUR

DATED: **COUNSEL FOR THE PETITIONERS**

IN THE HIGH COURT OF CHHATTISGARH AT BILASPUR

WRIT PETITION (PIL) No. /2016

PETITIONERS: Suneeta Pottam & Others

VERSUS

RESPONDENTS: State of Chhattisgarh & Others

AFFIDAVIT

I, Suneeta Pottam, daughter of Ayatu, aged about 19 years, resident of village Korcholi, Gram Panchayat Korcholi, PS Gangaloor, Tehsil Bijapur, District Bijapur, Chhattisgarh do solemnly swear and depose as follows:

1. That I am the Petitioner No. 1 in the matter above-mentioned and am as such competent to swear this affidavit being aware of the facts and circumstances of the case and I have been duly authorized by the other Petitioners to swear on this affidavit on their behalf.
2. That the contents of the accompanying Application for Waiver of Locus Standi Rule from Paragraphs 1 to 4 of this Application are true and correct to the best of my knowledge and belief and as per legal advice receive by me.
3. The contents of accompanying Writ Petition (PIL) have been read out and explained to me in Hindi and I have understood the same.

DEPONENT

Verification

I, Suneeta Pottam, the deponent above named, do hereby verify that the contents of the above affidavit are true and correct to the best of my knowledge and belief, that no part of it is false and nothing material has been concealed therefrom.

Verified at **.....** on this **.....** day of **.....**, **2016** at Bilaspur.

DEPONENT